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California Regional Water Quality Control Board

Central Valley Region

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23 May 2011

Mrs. April Fry, Owner
Los Banos W/I-5 KOA
28485 Gonzaga Road
Santa Nella, CA 95322

NOTICE OF APPLICABILITY

WATER QUALITY ORDER NO. 97-10-DWQ, GENERAL WASTE DISCHARGE REQUIREMENTS FOR DISCHARGES TO LAND BY SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS, LOS BANOS W/I-5 KOA, WASTE WATER TREATMENT FACILITY, MERCED COUNTY

The Los Banos W/I-5 KOA, Waste Water Treatment Facility (WWTF) discharges effluent to a lagoon for evaporation/percolation. Waste Discharge Requirements (WDRs) Order No. 73-53 currently regulates the discharge. The WDRs are obsolete, inconsistent with current plans and policies of the California Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board), and need to be updated.

On 2 March 2011, Central Valley Water Board staff received your letter requesting coverage of the discharge under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems* (hereafter General Order).

Based on the findings of the original WDRs, recent information from self-monitoring reports and communication with you, the discharge meets the conditions of the General Order. The discharge is hereby covered under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems*. The facility is assigned Notice of Applicability No. 97-10-DWQ-R5070.

The following requirements contained within the General Order apply to the subject discharge:

1. All section A Prohibitions;
2. Section B. Requirement Nos. 1.a-1.d and 6.a-6.d,
3. All Section C Ground Water and Surface Water Limitations,
4. Section D. Provision Nos. 1.a-1.v and
5. All Attachment B, Standard Provisions and Reporting for Waste Discharge Requirements.

The following sections of Attachment A, Monitoring and Reporting Program (MRP) No. 97-10-DWQ, apply to the discharge:

1. Disposal Monitoring, Pond/Basing Monitoring,
2. Recreation Vehicle (RV) Waste Monitoring and
3. Reporting.

LOCATION

Los Banos W/I-5 KOA operates the WWTF nine miles west of Los Banos, adjacent to Highway 152, in Section 20, T10S, R9E, MDB&M.

The WWTF is in the San Joaquin River Basin. The *Water Quality Control Plan for the Sacramento and San Joaquin River Basins, Fourth Edition* (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin.

DESCRIPTION

There are no natural surface water courses adjacent to the site. The beneficial uses for the ground waters of the State are: municipal and domestic supply, industrial service supply, industrial process supply, and agricultural supply. The groundwater underlying the site is of relatively poor quality with an electrical conductivity of about 3,000 umhos. Depth to water in 2010 was about 50 feet. Rainfall is about 9 inches annually.

The soils in the area are Panoche Formation consolidated shales and sandstones with a relatively low permeability.

FACILITY-SPECIFIC REQUIREMENTS

In addition to the above requirements, Los Banos W/I-5 KOA must comply with the following:

1. Discharge of wastewater at a location or in a manner different from that described above is prohibited.
2. The WWTF shall be operated in accordance with the requirements contained in the General Order.
3. The waste discharge shall not directly enter surface waters or surface water drainage courses.
4. Los Banos W/I-5 KOA shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board) until the NOA is officially terminated.
5. Failure to abide by the conditions of the General Order and this letter authorizing applicability, including its monitoring and reporting requirements, could result in enforcement actions as authorized by provisions of the California Water Code.

If you have any questions regarding this NOA, please contact Dale Harvey at (559) 445-6190.

Clay L. Rodgers

for Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 97-10-DWQ
Monitoring and Reporting Program No. 97-10-DWQ
Standard Provisions and Reporting Requirements